

Ambiguity in Reference Cohesion: A Systemic Functional Grammar Analysis of Nigerian Supreme Court Judgments

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Abstract

This paper investigates ambiguity in reference cohesion within Nigerian Supreme Court judgments. It employs Systemic Functional Grammar (SFG) as its analytical framework. The study draws on a purposively selected constitutional judgment from the 2023 judicial year. This period holds notable constitutional significance in Nigeria. The paper examines how specific cohesive devices generate interpretive ambiguity. The devices under focus are anaphoric, cataphoric, and exophoric reference markers. Their ambiguity carries significant consequences for legal clarity, precedent-setting and public comprehension. The analysis identifies four substantive instances of cohesive failure. These involve the nominal groups “their Lordships,” “the discretion,” “the provisions,” and “the application.” The failures arise from structural density, implicit presupposition of shared contextual knowledge and inadequate lexical anchoring. The paper argues that such ambiguities impair the normative authority of judicial texts. It proposes concrete remedial strategies to address this problem. These strategies include explicit nominal anchoring, consistent lexical tracking, structural signposting and contextual grounding. Each strategy can be integrated into judicial drafting practice without sacrificing the formal register of legal discourse.

Keywords: Cohesion, Reference, Systemic Functional Grammar, Legal Discourse, Judicial Writing, Nigerian Supreme Court

Introduction

The Nigerian Supreme Court occupies the apex of the country’s judicial hierarchy. Its judgments carry normative authority that cascades through lower courts, legal pedagogy and public consciousness of constitutional rights. For this authority to be effectively exercised, the textual quality of judicial writing must meet the highest standards of clarity, precision and internal coherence. Yet Nigerian Supreme Court judgments, like many common law appellate texts, are characterised by complex syntactic structures, dense intertextual reference and a register that routinely presupposes familiarity with procedural history. These features, when combined with imprecise deployment of cohesive devices, can generate significant ambiguity with substantive legal consequences.

This paper focuses on one dimension of this challenge: ambiguity in reference cohesion. Reference cohesion involves the use of pronouns, demonstratives, definite articles and nominal groups to link text elements across a discourse. It is foundational to the internal coherence of any sustained text. Where reference chains are unclear, readers cannot track the logical progression of legal reasoning. The identification of parties becomes confused. The specification of legal acts loses the precision that jurisprudential authority demands. In the Nigerian judicial context, this problem has direct practical implications. Ambiguously constructed reference cohesion can misdirect precedent

application, create inconsistencies in statutory interpretation, and erode public trust in the transparency of the judicial process.

The theoretical framework is Halliday's Systemic Functional Grammar (SFG), specifically its textual meta-function. This meta-function governs the organisation of language as message and the deployment of cohesive resources to ensure textual unity. SFG is particularly well-suited to this investigation because it situates linguistic choice within social function. It treats language not as an autonomous formal system but as a meaning-making resource. Its structures reflect and serve the social purposes of the communities that use them. In the legal context, this means that the cohesive architecture of a judgment cannot be separated from its social role. That role encompasses its function as an instrument of justice, governance and democratic communication.

Theoretical Background

Systemic Functional Grammar was developed principally by M.A.K. Halliday. It was further elaborated through collaborative scholarship with Ruqaiya Hasan, Christian Matthiessen, and others. The theory conceives of language as a network of systems from which speakers and writers make meaning-laden choices (Nwala 94). Unlike structural or generative approaches, SFG treats grammar as inherently social and functional. It is the means by which people enact and negotiate meaning in specific situational and cultural contexts.

Thomas Bloor and Meriel Bloor articulate the productive dimension of this approach. When people use language, they do not merely encode pre-formed thoughts. They actively construct meanings through the selection of lexico-grammatical resources. These resources include choices of singular or plural, positive or negative, and thematic or rhematic organisation (2). Grammar, from this perspective, is a system of choices that carry semantic and social weight simultaneously.

Halliday proposes that language operates on three primary levels. The first is substance, which refers to the material of language, whether sound or writing. The second is form, which denotes the lexico-grammatical organisation of linguistic signs. The third is situation, which encompasses the social and linguistic context that shapes and is shaped by language use (Nwala 94). Correspondingly, Halliday identifies three semantic meta-functions that language simultaneously fulfils in any utterance or text. These are the ideational, interpersonal, and textual meta-functions.

The ideational metafunction is concerned with the representation of experience. This includes the processes, participants and circumstances that constitute the content of an utterance. It encodes speakers' and writers' world-views and allows language to function as a medium for construing reality (Nwala 95). In legal discourse, the ideational dimension governs how legal processes, parties, and acts are represented. This makes its precision essential to the accurate specification of rights, obligations and liabilities.

The interpersonal meta-function governs interaction. It concerns the enactment of social roles, the expression of attitudes, and the management of communicative exchange. It encompasses sub-components relating to social function, including institutional positioning and status enactment. It also covers instrumental functions such as request, inquiry, and directive (Nwala 95). In judicial texts, this dimension is realised through

formal register, the indexing of judicial hierarchy, and the allocation of evidential authority to competing arguments.

The textual meta-function is the one most directly relevant to this study. It is concerned with the organisation of language as message. This involves how information is packaged, how themes are selected, and how the elements of a text are linked to form a coherent and unified whole. Cohesion is the primary mechanism by which the textual meta-function is realised (Halliday and Hasan 4). It is achieved through reference, ellipsis, substitution, conjunction and lexical devices. It ensures that language is not merely a sequence of isolated propositions but a structured, interconnected discourse navigable by readers. David Morley reinforces this point. He notes that SFG's task is to specify the total grid of meaning options available to any user of a language. This includes what the speaker "can mean" and how those meanings are realised through lexico-grammar.

Cohesion and Reference

Cohesion, as defined by Halliday and Hasan, is the set of relations that make a text function as a unified whole rather than a random sequence of sentences (4). Cohesion is realised when understanding one element depends on another. The presuppositions of one clause are resolved by reference to another. Meaning is then constructed through the cumulative integration of textual parts. Halliday and Matthiessen extend this framework by noting that cohesive resources can connect elements regardless of their textual size or proximity. This makes them particularly significant in extended legal discourse (536).

Reference cohesion involves the use of linguistic elements to point to other elements within the text or, in exophoric cases, outside it. These elements include pronouns, demonstratives, definite articles, comparative forms, and nominal groups. Halliday and Hasan distinguish three primary reference relations. Anaphoric reference occurs when the referring item points back to an antecedent already established in the preceding text. This is the most common form of reference cohesion in sustained discourse. Cataphoric reference occurs when the referring item anticipates a referent to be specified in subsequent text. It requires the reader to hold an unresolved reference in suspension until the antecedent appears. Exophoric reference occurs when the referring item points to an element in the situational context rather than within the text itself. Shared contextual knowledge is required for interpretation.

In coherent discourse, anaphoric and cataphoric reference are preferred because they establish recoverable, text-internal chains. Exophoric reference is appropriate where situational context is genuinely shared. In public legal texts, however, excessive reliance on exophoric reference constitutes a cohesive failure. It privileges insider knowledge and excludes broader readerships. As Leech and Short observe, for a text to be coherent, its sentences must be tied together explicitly or implicitly rather than constituting a random assortment of unrelated statements (245). Adeyemi concurs, identifying cohesion as the key mechanism that produces logical flow and unified meaning in textual discourse (55).

Legal Discourse: Characteristics and Complexity

Scholarship on legal discourse has established a rich understanding of its distinctive linguistic features. Richard Brilliant and Nwizug Suzi characterise it as a specialised

communicative mode. It is governed by strict evidential rules that structure verbal interaction and reproduce relations of power and institutional authority (94). Tunde Opeibi describes the courtroom as a marketplace of ideas. In this space, arguments are exchanged through highly formalised language. The structured nature of this language is inseparable from the authority relations it enacts (62). Peter Tiersma broadens this by observing that legal language varies significantly across jurisdictions, genres, and modes. These include spoken versus written and formal versus informal varieties. Context is therefore a decisive factor in register and organisation (139).

Stanislaw Gozdz-Roszkowski identifies the formulaic and replicative character of legal discourse as rendering it amenable to corpus-based analysis. He notes, however, that analysing authorship, disputed texts, and courtroom interaction presents challenges that require new methodological tools (1516). Robert Alexy's analysis situates legal discourse at the intersection of moral, ethical, and pragmatic considerations. It is governed by institutional constraints that are simultaneously shaped by broader normative frameworks (1033). Thorne McCarty identifies the challenge of integrating these components into a unified and unambiguous system. He regards this as one of the persistent difficulties of legal knowledge representation (186).

Ambiguity and Precision in Legal Discourse

The challenge of ambiguity in legal language has attracted sustained scholarly attention. Vijay Bhatia, Christopher Candlin, and Jan Engberg provide perhaps the most directly relevant analysis. They observe that legal genres feature a dense array of qualifications strategically positioned within syntactic structures. These qualifications aim to achieve clarity, precision, and comprehensiveness simultaneously (9). However, they also note that several factors complicate the achievement of this ideal. These include the specific legal system, the language of the jurisdiction, and the socio-political and cultural context (9). As legal discourse increasingly transcends jurisdictional boundaries, the diversity of its construction and interpretation becomes a more pressing concern (9).

The present study makes several contributions that distinguish it from the existing literature. First, much scholarship on legal discourse focuses on adversarial courtroom interaction or legislative drafting. Comparatively little attention has been paid to the internal cohesive structure of appellate judicial writing within the African common law tradition. Nigerian Supreme Court judgments represent a significant and under-studied genre. Their cohesive quality has direct implications for the consistency and fairness of the justice system.

Second, the study applies SFG's textual meta-function rather than narrower syntactic frameworks. This situates reference cohesion ambiguity within a theory of meaning-making that accounts for the social functions of judicial texts. This approach enables a more nuanced diagnosis of cohesive failure than purely grammatical analysis would permit.

Third, the study has practical implications. It identifies specific patterns of cohesive ambiguity and proposes evidence-based remedial strategies. In doing so, it offers a resource for judicial training, legal drafting reform, and the promotion of constitutional literacy among Nigerian citizens.

Methodology

Given the volume of Supreme Court judgments issued in 2023, a purposive sampling strategy was adopted. A single judgment was selected for two main reasons. First, it exhibited a range of reference cohesion features suitable for comprehensive analysis within the SFG framework. Second, it addressed constitutional and procedural questions of broad legal significance. Purposive sampling is well-established in qualitative linguistic research. In such research, depth of analysis of carefully selected instances is preferred over superficial treatment of a large corpus.

The method of analysis is descriptive and interpretive. The judgment text was examined for instances of reference pronoun use, nominal group deployment, and definite article marking that generate referential ambiguity. Each instance was classified according to three criteria. The first is its reference type. The second is the nature of the ambiguity it produces. The third is its implications for legal interpretation. The findings are presented in both discursive and tabular form. This enables systematic comparison and facilitates the practical application of the findings.

Data Analysis and Interpretation

The following extract is drawn from the selected 2023 Nigerian Supreme Court judgment. It encompasses the lead judgment of Kekere-Ekun JSC. It also includes the concurring opinions of Ejembi Eko JSC, Mohammed Lawal Garba JSC, Ibrahim Mohammed Musa Saulawa JSC, and Tijjani Abubakar JSC. All five opinions bear on the interpretation of Order 37, Rule 4 of the Anambra State High Court Rules 1988. The interpretation arises in the context of an application for leave to seek an order of certiorari.

The effect of this provision is that leave shall not be granted to apply for an order of certiorari to remove any judgment, order, conviction or other proceedings for the purpose of its being quashed, unless the application for leave is made not later than six months after the date of proceedings or such later period.... It could be seen that the application leading to this appeal was no doubt made well outside the six months period allowed by the rules for applying (for) such relief. The relief was nonetheless granted by the lower court. The respondents did not seek extension of time. The lower court, in view of Order 37 Rule 4(2) above, could not therefore grant the prayer. Failure on the part of the applicants to show that the granting of the leave has caused substantial hardship to them or in any way prejudiced their rights, could not confer on the lower court a power which was no longer its to invoke. Contrary to the finding of the lower court above, Order 37 Rule 4 is not expressed in absolute terms as found in most imitation statutes. In keeping with the general object of statutory interpretation, both subsections of the rule must be read together to ascertain the intention of the legislature. It is quite evident that their Lordships read Rule 4(2) in isolation without considering it alongside sub-rule 1 and particularly, sub-rule 1(b). Had they done so, I have no doubt that they would have come to a different conclusion. Having regard to the peculiar circumstances of this case, in which the earlier proceedings were declared a nullity, it was within the trial

court's discretion to grant the application. Furthermore, as rightly pointed out by the appellants at the court below, the respondents failed to show that the court's discretion was wrongly exercised. In conclusion, I resolve the sole issue in this appeal in the appellants' favour. The appeal is meritorious and it is hereby allowed. The judgment of the lower court delivered on 2 July 2008 is hereby set aside. The judgment of the High Court of Anambra State, sitting at Otuocha delivered on 23 June 2004 in Suit No. OT/MISC.4/97, quashing the proceedings, ruling and order of the Akwuzu Customary Court in respect of the motion dated 13 April 1992 in Suit No. CCA/2/92: Alexander Umeano & 2 Ors. v. Albert Anaekwe & Anor., is hereby affirmed. The parties shall bear their respective costs in this appeal.

EJEMBI EKO, JSC: I had the privilege of reading before now (in draft form) the judgment just delivered in this appeal by my learned brother, K.M.O. Kekere-Ekun, JSC. It represents my views in the appeal. Accordingly, I hereby adopt it, including all the orders made therein. Perhaps I should add that Section 274 of the Constitution empowers the Chief Judge of Anambra State to make rules regulating the practice and procedure of the High Court of the State. Order 37, Rule 4 of the extant Rules of Anambra State High Court prescribing, inter alia, how application for judicial review shall be brought was made within the powers conferred on the Chief Judge by the Constitution. Orders 37, Rule 4, no doubt limitation provision made pursuant to Section 44(2)(i) of the Constitution permitting the making of "any general law relating to limitation of actions", had conferred on trial court judicial discretion as regards the limitation. The appellant, having shown that the discretion complained of was not wrongly exercised, is entitled to judgment. Appeal allowed.

MOHAMMED LAWAL GARBA, JSC: I agree with the views and conclusion on the sole issue submitted by the appellants for decision by the court, as contained in the lead judgment delivered by my learned brother, K.M.O. Kekere-Ekun, JSC. As clearly demonstrated in the authorities of this court on the interpretation of statutes (including subsidiary legislations such as the Rules of court), subsections/sub-rules of a Section/Rule which all deal with the same subject matter, are required to be considered and constructed; one in relation to the other, together and holistically in order to bring out the real intention of the legislature in making the provisions. The provisions are never to be considered and interpreted in isolation of each other and without regard to the subject matter they together provide for. In this appeal, a consideration and construction of the provisions of Order 37, Rule 4 (1) and (2) of the 1988 Rules of the Anambra State High Court, together and in the context of the subject matter provided therein, would undoubtedly reveal that the trial court was vested with a judicial discretion on whether to grant or refuse an application for leave to apply for

an order of certiorari even after the expiration of the six (6) months period stipulated in sub-rule (2).

IBRAHIM MOHAMMED MUSA SAULAWA, JSC: The reasoning thereby postulated in the judgment just delivered by my learned brother, the Hon, Justice K.M.O. Kekere-Ekun, JSC, to the conclusive effect that the present appeal is meritorious, is very much in accord with mine. Hence, without much ado, I adopt the reasoning and conclusion in question as mine, allow the appeal and accordingly affirm the judgment of the High Court of Anambra State delivered on 23 June 2004 in Suit No. OT/MISC.4/97.

TIJJANI ABUBAKAR, JSC: My Lord and learned brother, Kekere-Ekun, JSC, granted me the privilege of reading in draft the comprehensive leading judgment prepared and rendered in this appeal. I am in total agreement with the reasoning and conclusion and adopt the judgment as my own. I have nothing extra to add. I endorse all consequential orders made therein including the order on costs. Appeal allowed.

Analysis: Reference Cohesion Ambiguity in the Judgement

The selected judgment exhibits cohesive features typical of Nigerian Supreme Court writing. These include formal register, complex nominal groups, extensive legal terminology, intertextual reference to precedent and statute, and a multi-authored structure. Within this matrix, reference cohesion serves as a primary mechanism for tracking legal entities, arguments, and acts across the judgment's extended textual span. The analysis that follows examines four substantive instances of cohesive failure. Each instance is subsequently tabulated for systematic comparison.

Anaphoric Reference Ambiguity

The phrase "their Lordships" appears in the lead judgment in the following sentence: "It is quite evident that their Lordships read Rule 4(2) in isolation without considering it alongside sub-rule 1 and particularly, sub-rule 1(b)." The third-person plural possessive employs the definite possessive "their" to signal that its referent has been previously established in the co-text. This is the hallmark of anaphoric reference.

In practice, however, no prior nominal group within the immediately preceding co-text explicitly names the judges under reference. The presumed referent is the justices of the lower appellate court who misapplied Order 37, Rule 4(2). This referent must be inferred from the broader procedural context of the judgment. Such inference requires drawing on knowledge external to the immediate text. This transforms what presents as anaphoric reference into an effectively exophoric one.

The ambiguity is compounded by the multi-authored nature of the judgment. Multiple judicial bodies are referenced within it. These include the trial court, the lower appellate court, and the Supreme Court itself. In this crowded referential environment, a plural nominal group with no explicit antecedent is particularly prone to misattribution. The formal judicial convention of avoiding direct naming of colleagues creates structural

pressure toward imprecise nominal reference. This pressure manifests here as substantive cohesive failure. From an SFG perspective, this violates the textual meta-function's requirement that reference items establish recoverable co-referential chains within the text.

The nominal group “the application” appears in the lead judgment in the following sentence: “Having regard to the peculiar circumstances of this case, in which the earlier proceedings were declared a nullity, it was within the trial court’s discretion to grant the application.” The definite article presents this as a known entity, signalling anaphoric reference.

The difficulty is that the judgment's procedural history introduces multiple applications. These include the original application to the Customary Court, the application for certiorari, and the application for leave to seek certiorari. Any of these could in principle be the intended referent. The absence of a qualifying prepositional phrase such as “the application for leave” or a demonstrative modifier such as “the present application” leaves the nominal group semantically underspecified.

This ambiguity is rendered particularly acute by its syntactic context. The phrase “the application” appears in a clause asserting that the trial court had discretion to grant it. This makes the precise identification of the referent a legally material matter. If “the application” refers to the application for leave, the judgment endorses discretion in a preliminary procedural context. If it refers to the application for certiorari itself, the legal significance is substantially different. The failure to specify the referent thus creates conditions for inconsistent application of the judgment's ratio decidendi in subsequent cases.

Cataphoric/Anaphoric Reference Ambiguity

The nominal group “the discretion” appears in Ejembi Eko JSC's concurring opinion in the following sentence: “The appellant, having shown that the discretion complained of was not wrongly exercised, is entitled to judgment.” The definite article signals that the reader is expected to have access to the referent. It presents this as a known, previously introduced entity.

The most plausible referent is the trial court’s discretionary power to grant leave for certiorari despite the expiry of the six-month limitation period. However, this specific discretionary act is not explicitly foregrounded in the sentence immediately preceding the cited passage. The nominal group lacks any accompanying modifier or appositive that would anchor its reference. The reader is therefore required to search backward through several paragraphs of text across multiple authors to reconstruct the antecedent.

The practical legal consequence is significant. The word “discretion” in judicial contexts is polysemous. It can refer to procedural discretion, substantive discretion, discretion to admit evidence, discretion to extend time, or discretion to grant relief. Without explicit qualification, “the discretion” cannot be securely identified as referring to one rather than another of these possible referents. This creates a risk that courts applying the judgment in future cases may construe the scope of the endorsed discretion more broadly or narrowly than intended.

Exophoric Reference Ambiguity

In Mohammed Lawal Garba JSC's concurring opinion, the following passage appears: "The provisions are never to be considered and interpreted in isolation of each other and without regard to the subject matter they together provide for." The nominal group "the provisions" employs the definite article to signal that its referent is identifiable. This identifiability may derive either from the preceding text or from shared contextual knowledge. However, the specific provisions to which "the provisions" refers are not explicitly named in the sentence or sentences from which the reference chain is being traced. These provisions are Order 37, Rule 4(1) and (2) of the 1988 Anambra State High Court Rules. The reader must infer the referent from general familiarity with the case. This requires drawing on exophoric knowledge rather than textual evidence.

This is a clear instance of exophoric reference in a context where endophoric reference would be both possible and legally appropriate. The practical consequence is significant. Readers without detailed prior knowledge cannot determine from the text alone which provisions are being discussed. Such readers include legal scholars approaching the judgment as precedent, litigants, and members of the public seeking to understand their constitutional rights. This undermines the accessibility and transparency that a constitutional judgment must achieve to fulfil its democratic function.

Summary of Reference Cohesion Ambiguities

Reference Marker	Textual Instance	Cohesive Issue	Reference Type
their Lordships	"It is quite evident that their Lordships read Rule 4(2) in isolation without considering it alongside sub-rule 1 and particularly, sub-rule 1(b)."	The plural possessive nominal group lacks a recoverable antecedent in the immediately preceding co-text. The presumed referent the justices of the lower appellate court must be inferred from the broader procedural context rather than from explicit textual introduction, violating the endophoric expectation of anaphoric reference.	Anaphoric reference ambiguity
the discretion	"The appellant, having shown that the discretion complained of was not wrongly exercised, is entitled to judgment."	The definite nominal group presupposes a specifically identified discretionary act, but no single, clearly delimited antecedent nominal group for this phrase has been established in the proximate co-text. The polysemy of	Cataphoric/Anaphoric reference ambiguity

		“discretion” in legal usage exacerbates the ambiguity, risking misconstruction of the scope of the endorsed judicial power.	
the provisions	“The provisions are never to be considered and interpreted in isolation of each other and without regard to the subject matter they together provide for.”	The definite article signals prior textual introduction of specific legislative clauses, yet the precise referent Order 37, Rule 4(1) and (2) of the 1988 Anambra State High Court Rules has not been explicitly co-indexed in the immediately preceding sentences. The reference chain terminates outside the text, requiring exophoric knowledge for resolution.	Exophoric reference ambiguity
the application	“Having regard to the peculiar circumstances of this case, in which the earlier proceedings were declared a nullity, it was within the trial court's discretion to grant the application.”	The nominal group appears in a legally material assertion about the trial court's discretion, yet the case's complex procedural history introduces multiple competing applications as potential referents. The absence of qualifying specification renders the anaphoric chain opaque and creates conditions for inconsistent application of the judgment's ratio in future cases.	Anaphoric reference ambiguity

Implication for Legal Interpretation, Precedent and Public Understanding

The reference cohesion ambiguities identified above carry substantive implications for the interpretive authority of the judgment. Ambiguities in the identification of “their Lordships” or “the discretion” create conditions under which lower courts may misconstrue which judicial conduct has been evaluated. They may equally misconstrue what specific discretionary power has been affirmed. In a hierarchical judicial system where Supreme Court judgments function as binding precedent, such misconstruals can produce systematic interpretive errors. These errors can propagate downward through the lower courts over time.

The under-specification of “the provisions” and “the application” creates analogous instability at the level of statutory construction. Where courts applying the judgment cannot determine from its text alone whether “the provisions” refers exclusively to Rule 4(1) and (2) or extends to other provisions of Order 37, a problem arises. The holistic interpretive methodology championed by the judgment, which involves reading sub-rules together rather than in isolation, may itself be applied inconsistently.

Precedent as a mechanism of legal continuity depends on the clarity of the reasoning it encapsulates. When a judgment establishes a legal principle, that principle must be expressed with sufficient precision. Future courts must be able to identify its scope and apply it consistently. One such principle established in the selected judgment is the trial court's discretionary power to grant leave for certiorari after the limitation period. This applies in cases where earlier proceedings have been declared a nullity. The reference ambiguities in the selected judgment impair this process.

The vague reference to “the peculiar circumstances” does not specify which features of the case triggered the discretion. This makes it difficult for lower courts to determine whether their own cases share the relevant peculiarity. Similarly, the unclear demarcation of “the provisions” leaves open whether the holistic reading principle applies narrowly to Rule 4 or more broadly to provisions of similar structural character.

Legal judgments in a democratic society serve a communicative function that extends beyond the parties to a dispute and the professional legal community. As authoritative texts that articulate constitutional rights and define the boundaries of state power, Supreme Court judgments are in principle public documents. Their meaning should be accessible to the citizens whose lives they govern.

The reference cohesion ambiguities identified in this study compound the already formidable accessibility challenges of legal discourse. Terms like “their Lordships” and “the discretion,” employed without adequate textual anchoring, presuppose a degree of legal-institutional literacy that excludes lay readers. Exophoric references that assume familiarity with the case's procedural history deny readers who did not follow the litigation the information they need to understand the judgment's significance. These failures reinforce the perception of the judiciary as opaque and remote. This perception is inimical to public trust and constitutional engagement.

Remedial Strategies for Judicial Drafting

Based on the analysis above, the following strategies are proposed to reduce reference cohesion ambiguity in Nigerian Supreme Court judgments. These strategies are consistent with both SFG's principles of textual cohesion and established best practices in legal drafting. Where a definite nominal group is used anaphorically, the antecedent should be explicitly established in the immediately preceding sentence or clause. In the case of “their Lordships,” the judgment should specify, at least once in the proximate context, which court's justices are referenced. An example would be the phrase “the justices of the Court of Appeal below.” Similarly, “the discretion” should be accompanied by a qualifying nominal group on its first substantive mention. A suitable formulation would be “the trial court's discretion to grant leave for certiorari after the expiry of the limitation period.”

Lexical repetition involves the reiteration of key nominal groups across a text. It is one of the most effective mechanisms for maintaining clear reference chains in extended discourse (Halliday and Hasan 278). In legal judgments, where precision is paramount, consistent nominal labels for key legal acts, parties, and documents reduce the ambiguity that arises from pronominal substitution or abbreviated nominal reference. The label “the application for leave to seek certiorari” should be maintained as a stable designation throughout the judgment. It should not be reduced to “the application” after its first occurrence.

The integration of explicit cohesive markers establishes textual landmarks that anchor reference items to their antecedents. Examples of such markers include “as noted above,” “with reference to the provisions cited in the preceding paragraph,” and “the discretion discussed in relation to Order 37, Rule 4(2).” Structural signposting is especially important in multi-authored judgments. In such judgments, each justice's concurring opinion introduces its own reference patterns. These patterns may not be seamlessly integrated with those of the lead judgment.

References to “the peculiar circumstances,” “the earlier proceedings,” and similar exophoric formulations should be accompanied by explicit textual specification. A brief integrative summary at the outset of each concurring opinion would be beneficial. This summary should identify the key facts, procedural history, and legal issues relevant to that opinion. It would establish the contextual scaffolding within which reference items can be securely anchored. This reduces the interpretive burden for all categories of reader.

Where the formal register of judicial discourse permits, simplified nominal structures can improve cohesive clarity. Reduced syntactic complexity in reference-critical passages can achieve the same effect. Neither measure compromises the authority of the legal text. This does not require the wholesale adoption of plain English legal drafting. Rather, it involves strategic clarity enhancement at points where reference ambiguity is most likely to generate legal or interpretive error.

Conclusion

This paper has examined reference cohesion ambiguity in a selected Nigerian Supreme Court judgment. It has applied Halliday and Hasan's cohesion framework within the broader theoretical context of SFG's textual meta-function. The analysis has identified four substantive instances of cohesive failure. These involve the nominal groups “their Lordships,” “the discretion,” “the provisions,” and “the application.” They exemplify anaphoric, cataphoric, and exophoric reference ambiguity respectively.

These ambiguities arise from a conjunction of factors characteristic of the genre. These factors include structural density, multi-authored composition, implicit presupposition of shared legal-contextual knowledge, and the formal convention of imprecise nominal reference to judicial colleagues. While each instance may appear minor in isolation, their cumulative effect is significant. Together, they impair the clarity, consistency, and accessibility of the judgment as both a legal instrument and a communicative text.

The implications are threefold. For legal interpretation, ambiguous reference chains create conditions for inconsistent application of the judgment's ratio decidendi. For precedent, underspecified nominal groups make it difficult to determine the precise

scope of the legal principles being affirmed. For public understanding, exophoric references and imprecise nominal tracking exclude lay readers from meaningful engagement with a text that governs their constitutional rights.

Several remedial strategies have been proposed. These include explicit nominal anchoring, consistent lexical tracking, structural signposting, contextual grounding, and targeted plain language integration. All of these are achievable within existing genre conventions. None of them compromises legal authority or formal register. Their adoption would represent a significant enhancement of the communicative quality of Nigerian appellate judicial writing.

More broadly, this study demonstrates the analytical and practical value of applying SFG's textual meta-function to legal discourse. By situating cohesion within a theory of language as social meaning-making, SFG provides tools for understanding judicial texts at multiple levels. It illuminates not merely the formal properties of such texts but also their social functions as instruments of justice, governance, and democratic communication. Further research might extend this framework to a larger corpus of Nigerian Supreme Court judgments. Such research would enable systematic analysis of cohesive patterns across different areas of constitutional law, different benches, and different historical periods. This would contribute to a more comprehensive account of the relationship between judicial writing quality and legal governance in Nigeria.

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